MSC MARRIAGE AND FAMILY THERAPY

LECTURE LIBRARY VOLUME 25 OF 28

MFT 724

Family Law and Advocacy

14 teaching weeks 2 figures

ELECTIVES

1.71 units Prerequisite: MFT 704

> Family therapists work at the edge of the legal system: custody disputes, protection proceedings, divorce, maintenance, guardianship.

One of 28 self-contained course books in the MSc Marriage and Family Therapy lecture library: a full taught semester per volume, with cases, practicals, assessment briefs, glossaries and model answers.

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MFT 724 Family Law and Advocacy

MSc Marriage and Family Therapy Elective 1.71 Units 14 teaching weeks Prerequisite: MFT 704

This volume is one of 28 course books that together cover the whole MSc Marriage and Family Therapy taught programme. Each book is written to carry a 14 16 week semester on its own: every week pairs a core idea with the practice that follows from it, a worked case, and a reflective task, and each book closes with an integration chapter, a glossary and a self-assessment paper with model answers.

The books are designed to be read straight through before the semester begins, revisited week by week, and used again in revision. Cross-references point to the other volumes where a topic is treated in more depth.

How to cite this volume

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A note on the case material

All families, couples and individuals in this book are fictional composites. They are written to teach pattern recognition, not to describe any real person. Nothing here replaces supervised clinical practice, professional registration, legal advice or medical care; legal content is orientation only and must be checked against the law of the relevant jurisdiction.

The lecture library

Twenty-eight self-contained course books carry the taught programme: eight in Semester One, seven in Semester Two, seven in Semester Three including the thesis, and six electives. The volume you are holding is marked in the margin.

Code	Course	Semester	Units
MFT 701	Fundamentals of Marriage and Family Therapy	One	1.71
MFT 702	Theories of Family Therapy	One	1.71
MFT 703	Human Development Across the Lifespan	One	1.71
MFT 704	Ethical and Legal Issues in Therapy	One	1.71
MFT 705	Research Methods in Marriage and Family Therapy	One	1.71
MFT 706	Clinical Practice and Techniques	One	1.71
MFT 707	Assessment and Diagnosis in Family Therapy	One	1.71
MFT 708	Cultural Competence in Therapy	One	1.71
MFT 709	Group Therapy Techniques	Two	1.71
MFT 710	Couples Therapy	Two	1.71
MFT 711	Child and Adolescent Therapy	Two	1.71
MFT 712	Crisis Intervention Strategies	Two	1.71
MFT 713	Substance Abuse and Family Dynamics	Two	1.71
MFT 714	Trauma-Informed Care	Two	1.71
MFT 715	Family Systems Theory	Two	1.71
MFT 716	Communication Skills in Therapy	Three	1.71
MFT 717	Psychopathology in Families	Three	1.71
MFT 718	Intimacy and Relationship Dynamics	Three	1.71
MFT 719	Family Life Cycle and Transitions	Three	1.71
MFT 720	Supervision and Consultation in Therapy	Three	1.71
MFT 721	Research Methodology	Three	1.71
MFT 722	Professional Development and Self-Care	Electives	1.71
MFT 723	Special Populations in Therapy	Electives	1.71
MFT 724	**Family Law and Advocacy**	Electives	1.71
MFT 725	Integrative Approaches in Therapy	Electives	1.71
MFT 726	Neurobiology of Relationships	Electives	1.71
MFT 727	Play Therapy Techniques	Electives	1.71
MFT 770	Master Thesis	Three	1.71

Contents

How to use this book . . . 5

1. Course description . . . 5

2. Learning outcomes . . . 5

3. Assessment . . . 5

4. The fourteen-week plan . . . 6

Week 1 Why legal literacy matters . . . 6

Week 2 Four marriage systems . . . 7

Week 3 Divorce and dissolution . . . 8

Week 4 Custody, access and the welfare principle . . . 8

Week 5 Maintenance and financial provision . . . 9

Week 6 Child rights and protection . . . 9

Week 7 Domestic violence law . . . 9

Week 8 Mediation and alternative dispute resolution . . . 10

Week 9 Reports and court . . . 10

Week 10 Expert versus treating roles . . . 10

Week 11 Working with lawyers and courts . . . 11

Week 12 Mediation skills assessment . . . 12

Week 13 Advocacy . . . 12

Week 14 Advocacy proposal and integration . . . 12

Glossary . . . 12

Self-assessment . . . 13

- Multiple choice . . . 13
- Answer key . . . 13
- Short answer . . . 13
- Essay (choose one, 2,000 words) . . . 13

Further reading . . . 14

Course leader's summary. Family therapists work at the edge of the legal system: custody disputes, protection proceedings, divorce, maintenance, guardianship. This course gives you the legal literacy to be useful, the boundaries to stay in your lane, and the advocacy skills to change the systems your clients pass through.

How to use this book

This is orientation, not legal advice. Statutes, case law and state practice vary and change. Every week names the questions you should ask a lawyer, not the answers you should give a client. The final weeks turn from individual cases to systemic advocacy.

1. Course description

The course covers: the Nigerian marriage and family law framework (statutory, customary, Islamic and cohabitation); divorce and dissolution; custody, access and maintenance; the welfare principle; child rights and protection law; domestic violence legislation; mediation and alternative dispute resolution; report writing and expert testimony; the therapist's role in court; and advocacy for policy and service change.

2. Learning outcomes

#	Outcome	Assessed
LO1	Explain the four marriage systems and their dissolution routes	Exam
LO2	Describe the legal framework for custody, maintenance and child protection	Exam
LO3	Distinguish therapy, mediation, expert assessment and legal advice	Viva
LO4	Write a defensible court-facing report within your competence	Report
LO5	Prepare a client for legal processes without becoming an advocate for a version of events	Case study
LO6	Conduct safe mediation or refer appropriately	Skills test
LO7	Design an advocacy campaign or policy proposal	Proposal

3. Assessment

Component	Weight	Due
Legal framework examination	25%	Week 7
Court-facing report (2,000 words)	30%	Week 10
Mediation skills assessment (30 min)	20%	Week 12
Advocacy proposal (1,500 words + presentation)	25%	Week 14

4. The fourteen-week plan

Week	Topic	Practical
1	Why family therapists need legal literacy	Role boundary mapping
2	Four marriage systems	Case classification
3	Divorce and dissolution	Route mapping
4	Custody, access and the welfare principle	Custody scenario
5	Maintenance and financial provision	Calculation exercise
6	Child rights and protection law	Reporting scenario
7	**Examination**; domestic violence law	Protection order pathway
8	Mediation and ADR	Mediation demonstration
9	The therapist in court: reports and testimony	Report drafting
10	**Report due**; expert versus treating roles	Role conflict analysis
11	Working with lawyers and courts	Interprofessional simulation
12	**Mediation assessment**	Assessed
13	Advocacy: from case to policy	Campaign design
14	**Advocacy proposal**; integration	Presentations

Week 1 Why legal literacy matters

Three reasons.

1. **Your clients are inside legal processes.** Divorce, custody, maintenance, protection orders, immigration, inheritance. If you do not know the terrain, you cannot help them navigate it.
2. **You will be asked for opinions you should not give.** "Will I get custody?" is a legal question with a clinical component. Confusing them harms clients.
3. **You may be a witness or a report-writer.** The quality of your documentation determines whether your evidence is useful or damaging.

The boundary map.

Activity	Who does it	Your role
Legal advice	Lawyer	Refer; explain the difference
Mediation	Trained mediator	Conduct only if trained and if safe; otherwise refer
Therapeutic work	You	Your core role
Expert assessment (custody)	Independent expert	Generally not your own client

Activity	Who does it	Your role
Court testimony	Witness	Fact witness; opinion only within expertise
Advocacy	You, as a professional	Legitimate, within your competence and evidence

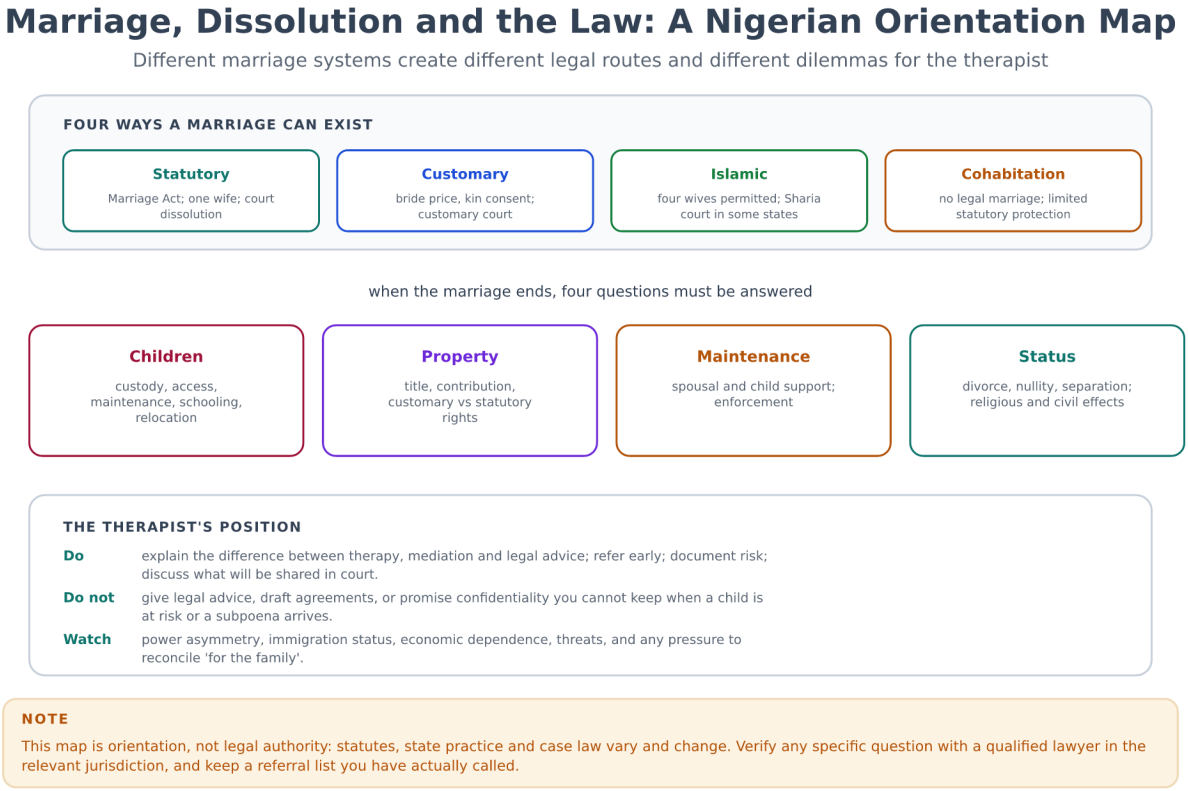


Figure 1.1 Marriage systems, dissolution questions and the therapist's position

Week 2 Four marriage systems

System	Legal basis	Form	Dissolution route
Statutory	Marriage Act	Monogamous; registered	High Court petition under the Matrimonial Causes Act
Customary	Customary law; state customary courts	Bride price, kin consent; potentially polygynous	Customary court; customary arbitration
Islamic	Islamic law; Sharia courts in relevant states	Up to four wives	Sharia court; talaq, khul', or judicial dissolution
Cohabitation	No marriage		No dissolution; limited statutory protection

Clinical implications of the overlap. A couple may be married under two systems; the customary marriage may not be registered; the religious ceremony may have legal consequences; and children's status may depend on which system applies. Do not assume.

Ask: "How was your marriage formalised? Was it registered? Is there a certificate? Which court would you go to if you needed to?" Then refer to a lawyer for the answer's consequences.

Week 3 Divorce and dissolution

Statutory divorce (orientation). Governed by the Matrimonial Causes Act: a petition to the High Court; a two-year minimum duration (with exceptions); a recognised ground (adultery, unreasonable behaviour, desertion, separation, or living apart); and provision for custody, maintenance, property and costs.

Customary and Islamic dissolution. Different processes, different courts, different evidentiary rules, different outcomes for women in practice. Know where to refer.

The therapist's role.

- Help the couple/clients clarify what they are deciding (discernment).
- Explain that therapy is not a legal process and does not produce evidence for court.
- Support the emotional work alongside the legal process.
- Refer for legal advice early, not at the point of crisis.
- Warn clients that therapy records may be requested in proceedings.

Week 4 Custody, access and the welfare principle

The welfare principle. Decisions about children are governed by the child's best interests, not the parents' preferences or the mother's automatic entitlement.

What courts consider (broadly). The child's wishes (weighted by age and understanding); continuity of care; the capacity of each parent; the child's relationship with each parent; siblings; education and health; and any risk of harm.

The therapist's contribution. You can describe the child's relationships, needs and views (carefully, and with appropriate methods); you can support the parents to reduce conflict; and you can help them construct a parenting plan.

What you should not do. Offer a custody recommendation for your own client. That is an expert assessment requiring independence, a defined methodology and often a court appointment. Role conflict invalidates the opinion and harms the family.

The parenting plan. Residence, contact, holidays, schooling, health decisions, communication, transitions, handovers, new partners, and a dispute-resolution clause. Concrete plans reduce conflict.

Week 5 Maintenance and financial provision

Child maintenance. Both parents have an obligation to maintain their children, under statutory and customary law. Amounts are determined by need, capacity and standard of living; enforcement is a practical problem.

Spousal maintenance. Available in some statutory proceedings; less so in customary and religious frameworks and highly variable in practice.

The therapist's role. Money is clinical material: it carries meaning about fairness, power and abandonment. Help the couple separate the amount from the meaning; encourage full financial disclosure; and refer for legal advice on entitlements.

Practical support. Referral to legal aid, mediation services, and women's rights organisations where appropriate.

Week 6 Child rights and protection

The Child Rights Act (2003) adopted in many but not all Nigerian states sets out the rights of the child, including protection from abuse and neglect, the right to be heard, and provisions on child marriage, child labour, and alternative care. State child protection laws and structures operationalise it.

Your duties.

1. Recognise signs of abuse and neglect.
2. Respond without leading or investigating.
3. Record verbatim.
4. Report through the designated route (state ministry responsible for social welfare; police family unit; designated safeguarding lead).
5. Document the advice received and the action taken.
6. Support the child through the process.

What not to do. Investigate yourself; promise secrecy; confront the alleged abuser; or delay the report while you "gather more information".

Week 7 Domestic violence law

The Violence Against Persons (Prohibition) Act 2015 applies in the FCT and in states that have adopted it; other states have their own laws or rely on criminal provisions. Protection orders, duties of the police and support for victims vary substantially by jurisdiction.

The clinician's knowledge. Where the nearest police family unit is; what a protection order requires; which shelters and legal aid organisations exist; and what happens procedurally to a woman who reports.

The clinician's limits. You are not the police, the lawyer, or the judge. Your role is safety planning, documentation, referral and support and not making the client's decisions for her.

Week 8 Mediation and alternative dispute resolution

What mediation is. A structured, voluntary process in which a neutral third party helps the parties reach their own agreement. It is not therapy and not arbitration.

When it is suitable. Both parties voluntary and safe; no coercive control; reasonably balanced power; an issue that can be negotiated; and willingness to disclose information.

When it is not. Violence or coercion; a severe power imbalance (including literacy, language or economic dependency); untreated substance use or mental illness that prevents participation; and safeguarding concerns.

Structure of a mediation session. Opening and ground rules each party's account identification of issues exploration of interests generation of options negotiation agreement documented review.

The therapist's temptation. To slip into therapy mid-mediation (exploring feelings) or into advice. Explain the frame at the start and hold it.

Week 9 Reports and court

The report structure.

1. Your role, qualifications and the basis of your opinion.
2. Who you saw, when, and with whose consent.
3. Methodology (interviews, observation, measures).
4. Findings, described behaviourally.
5. Opinion, clearly separated and limited to your expertise.
6. Limitations, explicitly stated.
7. Recommendations, if requested and within competence.

Language. "It is my opinion that " not "the court should". No adjectives about character. No speculation about events you did not observe.

Testimony. Answer the question asked; do not volunteer; distinguish fact from opinion from hypothesis; say "I don't know" when you don't; and remain courteous under challenge.

Records. Assume that anything you write may be read in court. Write accordingly.

Week 10 Expert versus treating roles

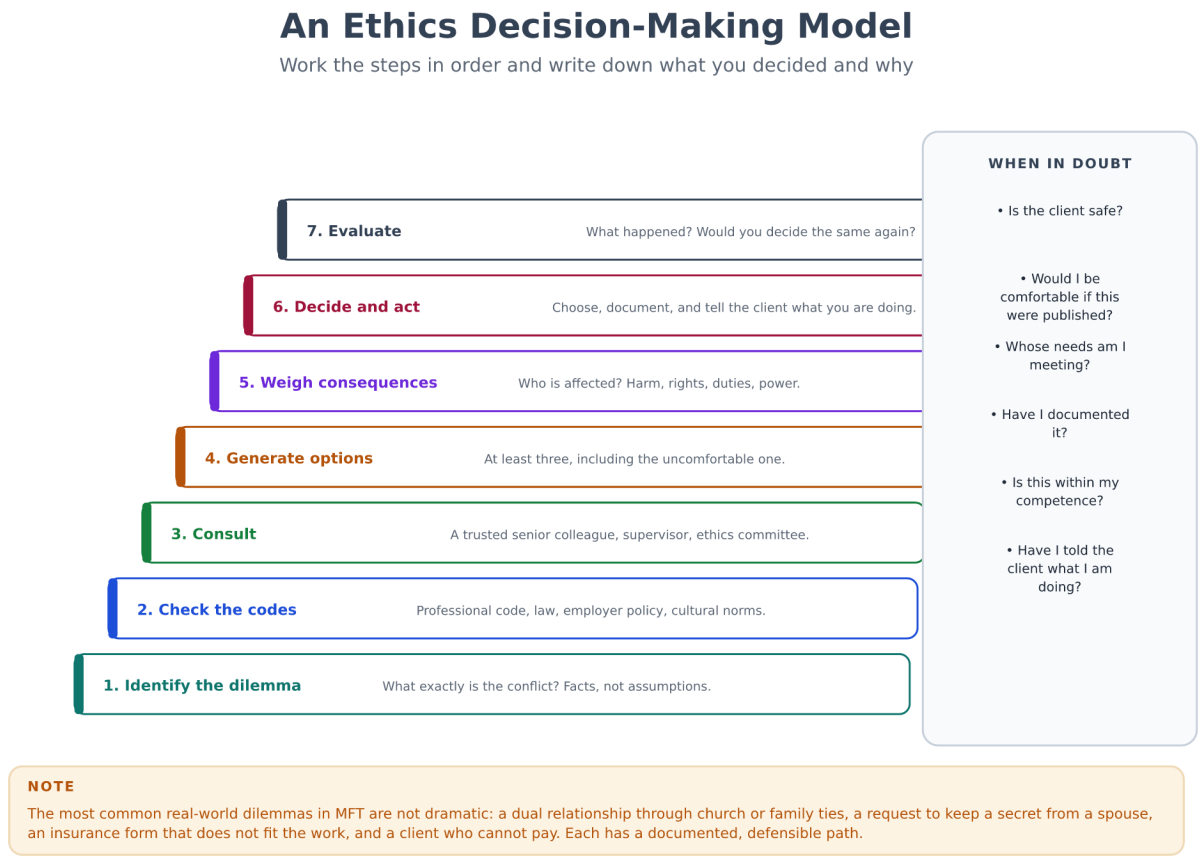


Figure 10.1 An ethics decision model for role conflicts

Treating clinician	Expert assessor
Paid by/for the client; therapeutic duty	Paid by the court; duty to the court
Confidential	Limited confidentiality; report disclosed
Advocates for the client's wellbeing	Neutral; reports what the evidence shows
Continuous relationship	Time-limited, defined assessment
Cannot be objective about custody	Can be objective if independent

The conflict is structural, not a matter of willpower. Accepting both roles compromises the therapy and the evidence. If asked, explain and refer.

Where you can help. Provide factual records with consent and a court order as required; support the client through the process; and help parents reduce conflict.

Week 11 Working with lawyers and courts

What lawyers need from you. Clear, dated, factual information; a timely response; an opinion you can defend; and an understanding of your limits.

What you need from them. Clarity about the purpose of the report; the legal questions to address; the deadline and format; and confirmation of consent arrangements.

Interprofessional etiquette. Do not tell a lawyer their job; do not let a lawyer tell you your clinical findings. Negotiate the boundary explicitly and in writing.

Week 12 Mediation skills assessment

Thirty minutes, role-played. Assessed on: framing and ground rules; neutrality; screening for safety; interest-based exploration; option generation; documentation; and referral decisions.

Week 13 Advocacy

From case to policy. Individual work reveals systemic failures: no shelter, no legal aid, no interpreter, no protection order enforcement, no follow-up. Advocacy is the professional response.

Levels.

1. **Case advocacy** with one client: writing a letter, making a call, accompanying to a service (with care).
2. **Service advocacy** improving your own organisation's pathway.
3. **Policy advocacy** submissions, research briefs, media, coalitions.
4. **Community advocacy** working with community organisations and faith groups.

The evidence base for advocacy. Documented case patterns, service data, and research. Anecdote persuades sympathetic listeners; data persuades sceptical ones.

Ethical guardrails. Consent before using a client's story; never identify a client; separate your professional opinion from your personal politics; and do not compromise clinical relationships for a campaign.

Week 14 Advocacy proposal and integration

Present a 1,500-word proposal: the problem, the evidence, the target, the ask, the allies, the timeline, and how you will know whether it worked. Then, in the final discussion, return to the boundary map from Week 1 and revise it with what you have learned.

Glossary

ADR alternative dispute resolution. **Coercive control** a pattern of domination and isolation that makes mediation unsafe. **Guardian ad litem** a person appointed to represent a child's interests in proceedings. **Maintenance** financial support owed to a spouse or child. **Matrimonial Causes Act** the Nigerian statute governing statutory divorce. **Protection order** a court order restraining a person from specified conduct. **Welfare principle** the rule that the child's best interests govern decisions about them.

Self-assessment

Multiple choice

1. A therapist asked by a client "will I get custody?" should: (a) predict the outcome (b) explain the welfare principle and refer for legal advice (c) refuse to speak (d) advise on strategy

2. Conducting a custody evaluation of your own client is: (a) acceptable with consent (b) a role conflict (c) required (d) ideal

3. Mediation is contraindicated when: (a) parties disagree (b) there is coercive control (c) there are children (d) money is involved

4. The welfare principle concerns: (a) the parents' rights (b) the child's best interests (c) the court's convenience (d) the family's income

5. A child protection concern should first be: (a) investigated by you (b) recorded and reported through the designated route (c) discussed with the family (d) held until you are certain

6. In mediation the therapist should: (a) explore childhood (b) hold the mediation frame (c) give legal advice (d) take sides

7. An expert report should separate: (a) facts from opinions (b) parents from children (c) fees from findings (d) nothing

8. Advocacy with a client's story requires: (a) no consent (b) informed consent and anonymisation (c) media involvement (d) the client's name

9. The four marriage systems include all except: (a) statutory (b) customary (c) Islamic (d) corporate

10. Therapy records in litigation should be treated as: (a) permanently confidential (b) potentially disclosable (c) irrelevant (d) destroyed immediately

Answer key

1 b 2 b 3 b 4 b 5 b 6 b 7 a 8 b 9 d 10 b

Short answer

1. Distinguish therapy, mediation, expert assessment and legal advice.
2. What are the grounds for refusing to mediate?
3. Outline a court-facing report structure.
4. List the steps when you suspect child abuse.
5. Give three examples of legitimate professional advocacy.

Essay (choose one, 2,000 words)

1. "The therapist's duty is to the family, the expert's duty is to the court." Analyse the consequences.

2. Critically examine the protection available to victims of domestic violence in your jurisdiction.
3. Design an advocacy campaign to improve one aspect of family justice in your context.

Further reading

- Matrimonial Causes Act (Nigeria), Cap M7 LFN 2004.
- Child Rights Act (Nigeria), 2003.
- Violence Against Persons (Prohibition) Act, 2015.
- Stahl, P. M. (2011). Conducting Child Custody Evaluations (2nd ed.). Sage.
- Emery, R. E. (2012). Renegotiating Family Relationships (2nd ed.). Guilford.
- Barsky, A. E. (2016). Clinicians in Court (2nd ed.). Guilford.

Next: MFT 725 Integrative Approaches in Therapy